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What to know about controversial automated license plate readers in WA

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Fierce opposition to automated license-plate-reading cameras is threatening to reshape how the devices are used, including in Washington state.

Police in the U.S. have used the surveillance technology for nearly 30 years. But as the number of cameras soared in recent years without any state laws to regulate them in Washington, so has criticism of the devices.

Earlier this month, Ring, a home security company owned by Amazon, canceled a planned integration" with Flock Safety, one of the most popular vendors of automated license plate readers. The partnership would have allowed law enforcement agencies using Flock to request camera footage from Ring users through the app.

Meanwhile, cities across the state have turned off or removed their cameras over swelling concerns about mass government surveillance, potential use for stalking and federal authorities utilizing the technology to target immigrants, protesters and people seeking health care such as abortion.

On Monday, the Lynnwood City Council plans to decide whether to terminate its contract with Flock, about four months after the city turned off its 25 cameras over privacy concerns. The city spent over \$171,000 on the cameras, which they used for just four months before powering them down in October.

Here's what to know about those cameras.

How do ALPRs work?

Some automated license plate readers, or ALPRs, are stuck to telephone poles, traffic lights or overpasses. Others are mounted on patrol cars, tow trucks or parking enforcement vehicles. Many are sold by private vendors like Flock Safety and Axon.

The camera automatically and continuously takes multiple pictures of any passing vehicles, capturing up to thousands of images per minute. Software detects any license plate numbers and logs them, along with the photos, the time and place the plates were seen, and other details about the vehicles, into a database.

The devices alert users, oftentimes law enforcement agencies but also homeowners' associations and business owners, whenever they detect a license plate number that's on a "hot list."

The "hot list" is a frequently updated list of plate numbers of cars reported as stolen or missing, or associated with things like unpaid traffic fines, missing people, a criminal investigation or people with outstanding arrest warrants.

Users can also search and download data from their databases - and increasingly other users' databases - by looking up plate numbers or unique vehicle features, including a car's make and model, color, damage, bumper stickers, or accessories.

The length of time ALPR footage is stored varies based on the vendor and customer. Flock Safety allows its users to download footage for up to 30 days before it gets automatically deleted. Once a user downloads any footage, it's up to them to decide when, or if, to delete it.

Washington doesn't have laws regulating ALPRs, including limiting how long footage can be retained or who can see it.

When did ALPRs get so popular in Washington state?

ALPRs were first invented about 50 years ago by scientists in the United Kingdom. But they didn't arrive in the U.S. until 1998, when U.S. Customs and Border Protection installed them at border entrances and areas frequented by drug and human traffickers.

Within about a decade, almost half of U.S. law enforcement agencies with 1,001 or more sworn officers were using the devices, according to a 2022 article in the Vanderbilt Journal of Entertainment and Technology Law.

Since its creation in 2007, the Washington Auto Theft Prevention Authority has given grant funding to police agencies across the state, including to help them buy equipment like ALPRs.

But the amount of ALPR grants soared in 2024, when the authority got an extra \$2.7 million - about as much as the group's annual funding - from the state's supplemental budget. Almost all of that money was spent on ALPRs, drones and equipment to reduce vehicle pursuits, including a grant for Everett to buy and install 74 ALPRs.

Cities have found other ways to fund or bolster their ALPR programs. Three of Redmond's 24 cameras were installed by a local homeowners association in 2024, then donated to the city. Lynnwood used an additional \$38,000 from its police department budget last year to help fund its 25 cameras.

Does Seattle use ALPRs?

Over 400 Seattle Police Department patrol cars and 15 parking enforcement vehicles are equipped with ALPRs.

The City Council restricts who can access the data, which is fed to the city's "Real Time Crime Center," a hub where police monitor live surveillance camera feeds, 911 calls and real time dispatch data. In September, the council ordered that any effort by the federal government to use the center for immigration enforcement would result in a 60-day shutdown of the entire system.

The police department's ALPR policy requires the data to be deleted within 24 hours, unless it is flagged by the "hot list." Data retained after the 24-hour window must be deleted within 90 days, unless it becomes part of an active investigation. Employees must also provide their name, the date and a reason every time they search the department's database.

Seattle police can only release their ALPR data in accordance with the state's public records law, or share it with other law enforcement agencies, prosecutors and insurance companies for official law enforcement or legal purposes.

Why are ALPRs so controversial?

In October, University of Washington researchers published a report showing U.S. Border Patrol had searched the Flock Safety databases of at least 18 police departments in the state - often without their knowledge.

The report raised concerns that local police were - unwittingly or purposefully - giving federal agencies and other states access to their ALPR systems to help them track down immigrants or target people seeking reproductive or gender-affirming health care.

In May, Texas authorities looking for a woman they said had self-administered an abortion searched for her using ALPR databases in Washington and Illinois, 404 Media reported.

The data-sharing described in UW's report violated some cities' ALPR policies and potentially the Keep Washington Working Act, a 2019 law barring most state agencies from cooperating with immigration enforcement.

The scrutiny intensified several weeks later, when a Skagit County judge ruled that footage captured by two cities' Flock Safety cameras are public records and must be made public in accordance with state law. Some feared the decision could make ALPRs a tool for stalking and harassment.

Cities and law enforcement agencies across Washington started turning off or removing their ALPR cameras amid the onslaught of concerns.

Do ALPRs work?

Police officials have said ALPRs help agencies recover stolen cars, track down suspects and locate missing people, and that sharing data between agencies speeds up investigations.

A recent ALPR alert, for instance, helped Kent police find and arrest a teenager suspected of trying to rob a man at gunpoint and fleeing in a stolen car.

The technology isn't foolproof, however.

ALPR systems sometimes misread license plate numbers and log inaccurate data. This can lead to mistakes when police don't verify that the information is correct.

In August, Redmond police arrested the wrong man based on an alert they received from Flock Safety about the man's son, who shares the same name and was wanted on a felony warrant, KING 5 reported.

There's also no way to guarantee ALPRs won't be misused.

In Kansas, a police chief had his police certification revoked in 2024 after state investigators learned he used his city's Flock Safety system to search for his ex-girlfriend's car and her new boyfriend's car hundreds of times, and followed the couple in his police vehicle.

The former chief cited reasons like "drug investigation," "suspicious" and "missing child" for the searches, but later admitted he did them because he was jealous, according to a state record.

What's being done to regulate ALPRs in Washington state?

Washington state lawmakers are considering a bill that could result in the state's first ALPR regulations.

The state Senate in early February approved an amended version of the bill, which would bar public agencies from using ALPRs for immigration enforcement, limit data retention to 21 days under most circumstances and exempt footage from public disclosure, except for research.

The bill would also bar agencies from collecting ALPR data at or near schools, courts, food banks, places of worship, facilities where immigration matters are conducted and facilities that provide gender-affirming and reproductive health care.

The amendments, including one increasing the data retention period from 72 hours to 21 days, drew criticism from some who argued they weakened the bill's privacy protections.

Sen. Yasmin Trudeau, a Tacoma Democrat who drafted the legislation, anticipated her proposal would not satisfy ALPRs' fiercest supporters or critics.

"It's important that it doesn't make anyone happy, but it makes sense to everyone, which is how we have to do policy, Trudeau said in a December interview.

To become law, the bill must be approved by the House and signed by the governor.

At least 23 other states approved ALPR regulations between 2007 and 2025. Many restrict ALPR use to police and parking enforcement, set data retention limits, and establish who can access the footage.

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